EuroSchool
Discover Yourself

Date : December 18, 2023

To :

The Secretary
Central Board of Secondary Education
Shiksha Kendra, Community Centre, Preet Vihar,
Delhi – 110092.

Subject : Format for the Fire Compliance Certificate of EuroSchool, Kharadi, Pune

Sir,

Kindly note that in the State of Maharashtra, the Fire NOC is issued only once for obtaining the Occupation Certificate of the premises. Afterwards, the Fire Department carries out the six monthly safety audits of the premises via their appointed and authorized Audit agencies. This is as per the Maharashtra Fire Prevention and Life Safety Measures Act 2006 and Rules 2009. The relevant clause from the ac and the one-time Fire Certificate is attached herewith, for the ready reference.

Kindly note that The Chief Fire Officer, Pune Municipal Corporation has refused to issue the Certification in format prescribed by CBSE as he insists that the Fire NOC is already issued to the School building in the format approved by Maharashtra Government.

Warm regards,

EUROSCHOOL KHARADI CAMPUS ★ PUNE

Ms Reshma Shaikh
Principal
EuroSchool – Kharadi, Pune

Office of the Chief Fire Officer
Pune Municipal Corporation
Out W.No : FB/ 948
Date : 02/05/2023

(KRD/0013/19)

To,
Vilas Tarwadi Architect,
Gultekadi, Pune.

Sub:- Part Final Fire NOC for the Building at Plot No. 3, S.No. 66/1(P), Kharadi, Pune.

(For Building Part Height -7.30 Mtrs. & Part Total Built up Area –3211.84 Sq.Mtrs Ground + 1st floor only)

Ref :- i) Your Office letter Dt. 03.04.2023.
ii) Revised Provisional Fire Noc No. FB/978, Dt.29.06.2021.
iii) Part Final Fire Noc No. FB/1023, Dt. 30.06.2021.(18.70 Mtrs.)
iv) Building Control Department, PMC No. CC/2578/22,Dt.21.12.2022.

Sir,

As per your request, the representative of this Fire Department has visited the proposed site along with Mr. Aman Kapahi on Dt. 03.04.2023 and tested the Hydrant system, Hose Reel system with equipments and portable fire extinguishers suggested in Revised Provisional Fire Noc No. FB/978, Dt.29.06.2021 issued by Fire Department.

The suggestions for fire protection arrangements as mentioned in the Revised Provisional Fire N.O.C. are made by M/s. Ascorp Solar and Fire LLP, Pune **"FORM A"** to that effect is submitted to this office for the fire prevention, protection & fire fighting system installed in the above said building as per The Maharashtra Fire Prevention & Life Safety Measures Act 2006. Annual Fee is paid by challan No.13735, Dt.06.04.2023, Rs.58,400/-

The fire fighting equipments and systems installed in the building should be maintained in high efficiency state and in proper working order at all time during the use of the building by owner or occupier. It will be your responsibility to get the yearly renewal of this Fire NOC after due inspection from the Fire Brigade authorities. The maintenance work of the fire fighting system shall be done by the licensed contractor, having license from Director, Maharashtra Fire services or Chief Fire Officer, Pune Fire Brigade. The list of the license contractor is available on /www.maharashtrafireservices.org.

Name of the person, owner, responsible for the building maintenance should be informed to this office. Fire protection system provided in the building should not be removed from the building for any reason.

This Part Final No objection is subjected to any other conditions laid by any other department.

Scrutiny by,
(Vijay T. Bhilare)
Station Duty Officer
Pune Municipal Corporation

(Devendra Potphode)
Chief Fire Officer
Pune Municipal Corporation

Copy to : Dy. Engineer (B.C.), PMC

असा. क्र. ६ राजस्टड न. एमएच/एमआर/साऊथ-२२९/२००६-०८

महाराष्ट्र शासन राजपत्र

असाधारण

प्राधिकृत प्रकाशन

सोमवार, फेब्रुवारी ५, २००७/माघ १६, शके १९२८

स्वतंत्र संकलन म्हणून फाईल करण्यासाठी या भागाला वेगळे पृष्ठ क्रमांक दिले आहेत.

भाग आठ

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधी व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (3) of Article 348 of the Constitution of India, the following translation in English of the Maharashtra Fire Prevention and Life Safety Measures Act, 2006 (Mah. III of 2007), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,
A. M. SHINDEKAR,
Secretary to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. III OF 2007.

(First published, after having received the assent of the President, in the "Maharashtra Government Gazette", on the 5th February 2007.

An Act to make more effective provisions for the fire prevention and life safety measures in various types of buildings in different areas in the State of Maharashtra.

WHEREAS it is expedient to make more effective provisions for the fire prevention and life safety measures in various types of buildings in different areas in the State of Maharashtra, for imposition of fee, constitution of a special fund and for the purposes connected therewith, or incidental thereto; it is hereby enacted in the Fifty-seventh Year of the Republic of India as follows :—

CHAPTER I

PRELIMINARY

1. (*1*) This Act may be called the Maharashtra Fire Prevention and Life Safety Measures Act, 2006. Short title, extent and commencement.

(*2*) It extends to the whole of the State of Maharashtra.

 [किंमत : रुपये ९.००]

(*3*) It shall come into force—

(*a*) in the areas of the local authorities and the planning authorities, on such date as the State Government may, by notification in the *Official Gazette*, appoint ;

(*b*) in other areas or part of the areas, on such date as the State Government may, by the same or like notification appoint ; and different dates may be appointed for different provisions thereof and for different areas or part of the areas ; and

(*c*) any reference in the Act to the commencement of this Act shall, in relation to a provision or an area, be constructed as a reference to the coming into force of this Act or any provision thereof in that area.

Definitions.

2. In this Act, unless the context otherwise requires,—

(*1*) the expression "building" shall have the same meaning assigned to it in the relevant municipal law or any law for the time being in force in the area in which this Act is in force ; and includes places or premises comprising land or building, or part of a land or building, whether authorized or otherwise, outhouses, if any, appertaining to such building or part thereof and petrol, diesel or gas lines, installations or pumps.

Explanation.—For the purposes of this Act the definition of "building" herein shall extend and apply only to such building in respect of which fee is assessable and leviable as specified in the Schedule-II ;

(*2*) "building bye-laws" means the building bye-laws, rules or regulations made under any relevant municipal law and includes the development control rules or regulations, by whatever name they are called, or any other building rules or regulations made under any other law for the time being in force and are in operation in the area in which this Act is in force ;

(*3*) "Chief Fire Officer" means the Chief Fire Officer or any other fire officer by whatever designation called, in charge of the fire-brigade maintained by a local authority or a planning authority ;

(*4*) "Director" means the person appointed by the State Government to be the Director, Maharashtra Fire Services, Group A, under section 18 ;

(*5*) the expression "fire prevention and life safety measures" means such measures as are necessary in accordance with the building bye-laws or as required by or under the provisions of any law or the National Building Code of India, 2005, for the time being in force, for the prevention, control and fighting of fire and for ensuring the safety of life and property in case of fire ;

(*6*) "Licensed Agency" means a person or an association of persons licensed by the Director, or within the area under his jurisdiction, the Chief Fire Officer or the nominated officer, for undertaking or executing fire prevention and life safety measures or performing such other related activities required to be carried out under this Act within the area of the local authority or a planning authority;

(*7*) "local authority" means a Municipal Corporation or a Municipal Council or a *Nagar Panchayat* or an Industrial Township constituted under any relevant municipal law for the time being in force in the State;

(*8*) "National Building Code of India, 2005" means the book containing Fire Prevention and Life Safety Measures to be implemented in the buildings, places, premises, workshops, warehouses and industries, published by the Bureau of Indian Standards, from time to time, with or without amendments;

(*9*) "nominated officer" means an officer possessing the prescribed qualifications and nominated by the Director or the Chief Fire Officer and includes an officer nominated by a local authority or a planning authority for the purposes of this Act:

Provided that, for the areas not covered by any Municipal Corporation or Municipal Council, the Director shall nominate an officer to be "a nominated officer", and different such officers may be nominated for different areas;

(*10*) "Occupier" includes—

(*a*) any person who for the time being is paying or is liable to pay to the owner the rent or any portion of the rent for the land or building or any part thereof in respect of which such rent is paid or is payable;

(*b*) an owner in occupation of or otherwise using land or building or part thereof;

(*c*) a rent–free tenant of any land or building or part thereof;

(*d*) a licensee in occupation of any land or building or part thereof;

(*e*) a member of a co-operative housing society or an apartment owner; and

(*f*) any person who, or an association, corporation (whether incorporated or not) or an organisation which is liable to pay to the owner damages for the use and occupation of any land or building or part thereof;

(*11*) "owner" includes a person who for the time being is receiving or is entitled to receive, the rent of any land or building or part thereof whether on his account or on account of himself and others or as an agent, a registered co-operative housing society, trustee, guardian or receiver or any other person

who should so receive the rent or be entitled to receive it if the land or building or part thereof were let to a tenant, or a builder, developer or promoter who constructs flats or apartment for sale under the provisions of the Maharashtra Ownership Flats (Regulation of the promotion of construction, sale, management and transfer) Act, 1963, or, as the case may be, the Maharashtra Apartment Ownership Act, 1970 ; Mah. XLV of 1963. Mah. XV of 1971.

(*12*) "planning authority" includes,—

(*a*) the Nagpur Improvement Trust constituted under the Nagpur Improvement Trust Act, 1936 ; C.P. and Berar XXXVI of 1936.

(*b*) a Special Planning Authority constituted or appointed or deemed to have been appointed under section 40 or the New Town Development Authority constituted or declared under the provisions of section 113 of the Maharashtra Regional and Town Planning Act, 1966 ; Mah. XXXVII of 1966.

(*c*) in respect of the slum rehabilitation area declared under section 3C of the Maharashtra Slum Areas (Improvement, Clearance and Redevelopment) Act, 1971, the Slum Rehabilitation Authority appointed under section 3A of the said Act ; Mah. XXVIII of 1971.

(*13*) "prescribed" means prescribed by rules ;

(*14*) "relevant municipal law" means,—

(*a*) the Mumbai Municipal Corporation Act ; Bom. III of 1888.

(*b*) the Bombay Provincial Municipal Corporations Act, 1949 ; Bom. LIX of 1949.

(*c*) the City of Nagpur Corporation Act, 1948 ; C.P. and Berar II of 1950.

(*d*) the Maharashtra Municipal Councils, Nagar Panchayats and Industrial Townships Act, 1965 ; Mah. XL of 1965.

(*15*) "rules" means rules made under this Act ;

(*16*) " Schedule" means Schedule appended to this Act.

CHAPTER II

Provisions Relating to Fire Prevention and Life Safety Measures

Owners or occupiers' liability to provide for fire prevention and life safety measures.

3. (*1*) Without prejudice to the provisions of any law or the rules, regulations or bye-laws made thereunder or the National Building Code of India, 2005, relating to fire prevention and life safety measures and in operation in the State for the time being in force, the owner or where the owner is not traceable, the occupier, of a building as classified in the Schedule-I or part of any such building shall provide fire prevention and life safety measures in such building or part thereof, minimum fire fighting installations as specified against such building in the said Schedule ; and the owner or, as the case may be, the occupier shall maintain the fire prevention and life safety measures in good repair and efficient condition at all times, in accordance with the provisions of this Act or the rules :

Provided that, in the case of such building or part thereof the construction of which has been completed immediately before the date of commencement of this Act, the occupier, and subject to the provisions of sub-section (*2*), in the case of such building or part thereof which is under construction on such date, the owner, shall undertake and carry out such additional fire prevention and life safety measures, as are specified in the notice served on him under section 6.

Explanation.—The classification of buildings as mentioned in the Schedule-I under this section and that in Schedule-II under section 11, conforms to the classification of buildings made under the provisions of the National Building Code of India, 2005.

(*2*) Notwithstanding anything contained in any law for the time being in force, no authority empowered to sanction the construction plan of any building or part of a building and to issue certificate of completion thereof, shall issue any certificate of completion or part completion thereof, unless it is satisfied that the owner has complied with the requirements specified in Schedule-I, or as the case may be, in the notice so served on him as aforesaid.

(*3*) The owner or occupier, as the case may be, shall furnish to the Chief Fire Officer or the nominated officer, a certificate in the prescribed form issued by a Licensed Agency regarding the compliance of the fire prevention and life safety measures in his such building or part thereof, as required by or under the provisions of this Act, and shall also furnish to the Chief Fire Officer or a nominated officer, a certificate in the prescribed form, twice a year in the months of January and July regarding the maintenance of fire prevention and life safety measures in good repair and efficient condition as specified in sub-section (*1*).

(*4*) No person shall tamper with, alter, remove or cause any injury or damage to any fire prevention and life safety equipment installed in any such building or part thereof or instigate any other person to do so.

Preventive measures.

4. (*1*) The State Government may, by notification in the *Official Gazette*, require owner or occupier of premises in any area or of any class of premises used, which in its opinion, are likely to cause risk of fire, to take such precautions as may be specified in such notification.

(*2*) Where such notification has been issued, it shall be lawful for the Director or Chief Fire Officer of local authority or planning authority or any fire officer authorized either by the Director or Chief Fire Officer to direct the removal of objects or goods likely to cause the risk of fire, to a place of safety and on failure by the owner or occupier to do so, the Director or any Chief Fire Officer or fire officer may, after giving the owner or occupier a reasonable opportunity of making the representation, seize, detain or remove such objects or goods.

(*3*) The Director or the Chief Fire Officer or any other fire officer while performing his duties in Fire Fighting operations or any other duties of seizure, detention or removal of any goods involving risk of fire may require the assistance of a police officer or members of the police force as an aid in performance of such duties and it will be the duty of police officer of all the ranks or such members to aid the Director or such fire officer in the execution of their duties under this Act.

Power of inspection.

5. (*1*) The Director or the Chief Fire Officer or the nominated officer may, after giving three hours' notice to the occupier, or if there is no occupier, to the owner of any place or building or part thereof, enter and inspect such place or building or part thereof at any time between sunrise and sunset where such inspection appears necessary for ascertaining the adequacy or contravention of fire prevention and life safety measures :

Provided that, the Director or the Chief Fire Officer or the nominated officer may enter into and inspect any such place or building or part thereof at any time if an industry is working or an entertainment is going on at such place, building or part thereof, or if it appears to him to be expedient and necessary to do so in order to ensure safety of life and property.

(*2*) The Director or the Chief Fire Officer or the nominated officer shall be provided with all possible assistance by the owner or occupier, as the case may be, of such place or building or part thereof for carrying out the inspection under sub-section (*1*).

(*3*) The owner or occupier or any other person shall not obstruct or cause any obstruction to the entry of a person empowered or authorised under this section into or upon any land or building or shall not molest such person after such entry for inspection.

(*4*) When any such place or building or part thereof used as a human dwelling is entered under sub-section (*1*) due regard shall be paid to the social and religious sentiments of the occupiers ; and before any flat, apartment or a part of such building in the actual occupancy of any woman, who, according to the custom does not appear in public, is entered under sub-section (*1*), notice shall be given to her that she is at liberty to withdraw, and every reasonable facility shall be afforded to her for withdrawing.

(*5*) Where the inspection is carried out by the nominated officer under the preceding provisions of this section, he shall give a report of any such inspection to the Director and the Chief Fire Officer of the authority concerned.

Notice regarding fire prevention and life safety measures.

6. The Director or the Chief Fire Officer or the nominated officer shall, after completion of the inspection of the place or building or part thereof under section 5, record his views on the deviations from or the contraventions of, the requirements with regard to the fire prevention and life safety measures or the inadequacy or non-compliance of such measures provided or to be provided therein with reference to the height of the building or the nature of activities carried on in such place or building or part thereof and issue a notice to the owner or occupier of such building or part thereof directing him to undertake such measures within such time as may be specified in the notice.

Steps to be taken in the event of non-compliance of notice.

7. (*1*) Without prejudice to the prosecution for offence of non-compliance of the notice issued under section 6, the Director or the Chief Fire Officer may, in the event of non-compliance of any such notice, take such steps including exercising the power to have the place, building or any part thereof sealed under section 8, as may be necessary for the compliance of such notice.

(*2*) All expenses incurred by the Director or the Chief Fire Officer in relation to any steps taken by him under sub-section (*1*) shall be payable on demand, by the owner or occupier on whom such notice is served, and shall, if not paid within fifteen days after such demand be recoverable, without prejudice to the provisions of sub-section (*3*) of section 20, as if it were the arrears of tax on property and the provisions under the relevant municipal law or any other law for the time being in force and is in operation within the area of jurisdiction of the local authority or planning authority concerned for recovery of arrears of tax on property, shall apply *mutatis mutandis* for such recovery as they apply to the recovery of arrears of tax on property or where any such law is not so in operation then, as an arrears of land revenue.

Power to seal building.

8. (*1*) If the Director or the Chief Fire Officer is satisfied that due to inadequacy of fire prevention and life safety measures the condition of any place or building or part thereof is in imminent

danger to person or property, then notwithstanding anything contained in this Act, or any other law for the time being in force, he shall, by order in writing, require the persons in possession or in occupation of such place or building or part thereof to remove themselves forthwith from such place or building or part thereof.

(*2*) If an order made by the Director or the Chief Fire Officer under sub-section (*1*) is not complied with, the Director or the Chief Fire Officer may direct,—

(*a*) the authority responsible for supply of electricity or the authority responsible for supply of water to disconnect the supply of electricity or water, as the case may be;

(*b*) any police officer having jurisdiction in the area to remove such persons from such place or building or part thereof;

and such authority or police officer shall comply with such direction;

(*3*) After the removal of the persons under sub-section (*1*) or sub-section (*2*), as the case may be, the Director or the Chief Fire Officer shall cause such place or building or part thereof, to be sealed by such police officer forthwith.

(*4*) No person shall remove such seal except under a written order made by the Director or the Chief Fire Officer *suo motu* or on an application of the owner or occupier.

CHAPTER III

Licensed Agency

Power to grant licence to act as Licensed Agency.

9. (*1*) The Chief Fire Officer may grant any person or association of persons as he thinks fit, a licence to act as a Licensed Agency for the purposes of this Act.

(*2*) Any person intending to have or renew such licence shall apply to the Chief Fire Officer in the prescribed form and in the prescribed manner. Such application shall bear a court-fee stamp of five rupees and shall be accompanied by the prescribed fee.

(*3*) On receipt of such application, the Chief Fire Officer may, after holding such inquiry as he deems fit, either grant the licence in the prescribed form for a period of one year or renew the same for a like period or, for reasons to be recorded in writing, by order refuse to grant or renew the licence.

(*4*) Where the Chief Fire Officer has reason to believe that any person to whom a licence has been granted has contravened any provisions of this Act or of the rules or failed to comply with the conditions of the licence or is unfit by reason of incompetency, misconduct or any other grave reasons, the Chief Fire Officer may, after giving to the person a reasonable opportunity to show cause, for reasons to be recorded in writing, by order suspend or cancel the licence.

(*5*) The Director and the nominated officer may also exercise the powers under this section, within their respective jurisdiction.